Device Upgrade and Contract Terms

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When you may upgrade, what it costs to leave a contract early, how a device subsidy is repaid, and what a trade-in is worth.

1. Purpose

A subsidised device is sold below its retail price in exchange for a minimum term. This document sets out how that bargain is unwound, whether you want to upgrade early, leave early, or simply know where you stand.

2. Upgrade eligibility

You may upgrade to a new subsidised device when either condition is met:

- At least 80 percent of your minimum term has elapsed, or
- You settle any remaining device subsidy in full, in which case you may upgrade on any day of the term.

A subscription that is out of contract, or that never carried a minimum term, is always eligible and pays nothing to upgrade.

2.1 Calculating the eligibility date

The eligibility date is the activation date plus 80 percent of the term, rounded up to the next whole day:

Worked example

```
eligibility_date = activation_date + ceil(0.80 x term_days)

12-month term activated on 1 December 2025
  term_days        = 365
  80 percent       = 292 days
  eligibility date = 19 September 2026

On 16 September 2026 that subscription is 79.2 percent elapsed,
so it is 3 days short of eligibility.
```

2.2 Eligibility is assessed on the day you ask. We do not reserve stock or hold a price against a future eligibility date.

2.3 An upgrade starts a new minimum term on the date the new device is dispatched, not on the date it is delivered or activated.

3. Early termination fee

If you cancel a subscription before the end of its minimum term, an early termination fee is payable:

Worked example

```
ETF = (remaining full months x 40% of monthly fee)
      + outstanding device subsidy
```

- A remaining full month is a whole calendar month between the cancellation date and the contract end date. Part months are not counted.
- The 40 percent reflects the cost we avoid by no longer carrying your traffic, and is the same on every plan.
- The outstanding device subsidy is charged in full and is not discounted, because it is money already

spent on your behalf.

Worked example

```
Flex 50GB at 45.00 USD/month, cancelling with 2 full months
remaining and 180.00 USD of device subsidy outstanding:

  Airtime element = 2 x (0.40 x 45.00) = 2 x 18.00 =  36.00 USD
  Device element  =                                   180.00 USD
  ETF total                                         = 216.00 USD
```

3.1 No early termination fee is payable where you cancel within the 14-day change of mind window in section 6, where you are exercising a right to cancel after we have increased prices mid-term, or where the subscription is out of contract.

3.2 The fee appears on your final bill and is payable within 14 days of it.

4. Device subsidy

The subsidy is the difference between the retail price of the device and what you paid at the point of sale. It reduces in equal parts across the minimum term, one part for each full month served, and reaches zero on the contract end date.

Worked example

```
monthly_reduction = initial_subsidy / term_months
outstanding       = initial_subsidy - (full_months_served x monthly_reduction)
```

4.1 The outstanding subsidy is shown against your subscription and is the figure used in both section 2 and section 3. It is the single number that decides what an early upgrade or an early exit costs.

5. Trade-in

A working device may be traded in against an upgrade. The grade is set on inspection after we receive the device, and you have 7 days to reject a regrade and have the device returned free of charge.

Grade	Condition	Credit
A	Fully working, no visible wear, battery health 85 percent or above	220.00 USD
B	Fully working, light scratches, battery health 70 percent or above	140.00 USD
C	Working, heavy wear or cracked back glass	60.00 USD
F	Not powering on, cracked screen, or water damage	No credit, free recycling

- A trade-in credit may be set against an outstanding device subsidy, which is often the quickest route to early upgrade eligibility.
- Trading in while recontracting for 24 months adds a 40.00 USD bonus to grades A, B and C.
- A device reported lost or stolen, or locked to another account, cannot be traded in.

6. Change of mind and returns

A device bought remotely may be returned within 14 days of delivery for a full refund, provided it is undamaged, complete with its accessories, and has used less than 2 GB of data. The subscription is cancelled with no early termination fee. A device bought in a store may be exchanged within 14 days but is not refundable once unsealed, unless it is faulty.

7. End of the minimum term

7.1 We write to you 30 days before your minimum term ends to set out your options.

7.2 If you do nothing, the subscription continues month to month at the same monthly fee, with no minimum term, and may be cancelled with 30 days notice at any time and at no cost.

7.3 An out-of-contract subscription may change plan freely, up or down, with the change taking effect at the start of the next billing cycle.

8. Porting your number out

You may take your number to another operator at any time. Request a porting authorisation code through the assistant or the app and we will issue it within one working day. Porting out does not waive an early termination fee, and a porting lock under TC-POL-003 section 6 will delay it.

9. Definitions

- Minimum term -- the number of months the subscription must run, set at activation.
- Device subsidy -- the unrepaid part of the discount given on the device.
- Out of contract -- a subscription whose contract end date has passed.
- Recontract -- accepting a new minimum term on an existing number.